

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On November 23, 2022, a complaint was filed with entry registration number REGAGE22e00053375055 before the Spanish Agency for Data Protection against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. with NIF A78923125 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they became aware that their phone lines were being diverted to a third phone without their consent, alleging a possible identity theft.

Along with the notification, the following documents were submitted:

- Police reports dated October 11 and 26, and November 8, 2022.
- Complaint filed with the Secretary of State for Telecommunications and Digital Infrastructures, submitted on October 13, 2022.
- Copy of the invoices showing the diversion without their consent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on January 16, 2023, as evidenced by the acknowledgment of receipt in the file. On February 16, 2023, a response was received by this Agency indicating that:

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“Ms. A.A.A. claims the activation of an unconditional call service from the line ***PHONE.1 which was under her ownership. There are no incidents recorded, as it does not appear that the aforementioned line had the unconditional call service activated.”

“There is no record that the line ***PHONE.1, of which the complainant is the owner, had the unconditional diversion service activated (all calls are automatically diverted), although, in the event that it had been activated, all programmed diversions can be deactivated from the customer's own device by dialing ##XXX# and the call button.”

THIRD: On February 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

POINT 1. The complained party has responded to this Agency, within the framework of Admission to (AT/00083/2023), stating that they responded in due course to the complaint filed by the complainant before the Telecommunications User Attention Office, providing a copy of the same. This response reflects that “there is no record that the unconditional diversion service was activated (all calls are automatically diverted), although, in the event that it had been activated, all programmed diversions can be deactivated from the customer's own device by dialing ##002# and the call button.” They

indicate that this is not a case of fraud or identity theft.

POINT 2. Following a request for information in the present inspection proceedings, the complained party was required to provide documentation proving that they had verified the identity of the person who requested the diversions of the line. The complained party was informed in the request that the complainant had submitted two invoices in which, in the Summary of Consumption, "Call Diversion" appears:

- dated November 1, 2022, ref. MM1****XXXXXXX (Sep 18 - Oct 17),
- dated September 1, 2022, ref. MM1****XXXXXXX (Jul 18 - Aug 17).

The request sought detailed information recorded in the systems of the complained party regarding the two cited diversions, type of diversion (unconditional, when the line is busy, when there is no answer, only calls, only SMS, etc.), date, time when they were activated, and the means by which they were made or requested.

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In response to this request, the responding party indicates that, in the traffic for the respective billing period, there are call diversions, all to: 1) Voicemail of the line 2) Missed Calls Service: ***PHONE.2. (The line ***PHONE.2 is a Movistar line where missed calls are diverted for the provision of the "Avisame" service, which consists of notifying when a line being called is no longer busy or turned off and becomes available).

Regarding the documentation proving the verification of the identity of the person who requested the diversions of the line, they only respond that the Call Diversion is a personalized configuration of the mobile terminal by the user of the same.

POINT 3. This Data Inspection has conducted the following verification by calling Movistar, at the number XXXX Customer Service, (from a Movistar line):

Inquiring about the call diversion option for a mobile line, both the cost and the way to request it. The telephone agent who answers the call indicates that it can be done in two ways:

- from the app on the terminal of the line itself or
- from any other device by identifying in the private customer area, via web.

The agent informs how to access the call diversion option through these two methods. The agent is asked if the diversion can be made through this call to Customer Service since the mobile terminal has been left at another address and is not available, and they respond that no, it cannot be done.

Regarding the cost, they respond that if the line to be diverted has a plan with unlimited calls, the diversion has no cost, and, otherwise, depending on the specific rate plan, there may be a cost for the call generated by the diversion, that is, the call from the diverted line to the line to which it has been diverted.

They comment that if it were a fixed line, the service has an additional cost of 4 euros/month. The call is ended, and the existence of the option in the Private Customer Area for a mobile line is verified.

POINT 4. A new request for information is made to the responding party to provide documentation proving the verification of the identity of the person who requested the diversions of the line, as well as information about the diversions, such as the type of diversion (unconditional, when the line is busy, when there is no answer, only calls, only SMS, etc.), date, time when they were activated, and the means by which they were made or requested. Documentation proving the information provided is requested. Date when the diversions were deactivated and the reason for the deactivation.

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They are informed that this Data Inspection understands that call diversions can be:

- configured from the mobile terminal itself using codes,
- online through the Private Customer Area, or App,
- requested by calling Customer Service, if

The question is raised about what happens in situations where the user contacting Customer Service states, for example, that they have forgotten the mobile terminal at another address or location and need to divert calls to another number to receive them.

The responding party insists on the information previously provided regarding the diversions on the complainant's lines that are recorded in their systems: 1) Voicemail of the line 2) Missed Calls Service: ***PHONE.2. They explain that the diversions were activated during the time periods referred to in the mentioned invoices and consisted of call diversions from the voicemail service and the missed calls service.

They indicate that the voicemail service records the messages from the calling line when a call cannot or does not want to be answered. Likewise, the diversion of calls to voicemail can be configured by the mobile user by calling XXXXX and through the personalized account on the internet called My Movistar mobile, for cases where the terminal is turned off, out of coverage, busy, rejects the call, or when there is no answer.

They also indicate that, on the other hand, through the Missed Calls service, an SMS message is received indicating the phone number that called the receiving line of the mentioned message. The activation and deactivation of the Missed Calls service is carried out by the user of the mobile terminal, by dialing the number 22200, and serves for cases where the terminal supporting the destination line of the call is turned off or out of coverage, lacks response, and when it is busy.

Finally, they state that there are other types of diversions, different from voicemail and missed calls activated in the complainant's case, that can be activated online through My Movistar or by entering the codes on the terminal.

They state that in January 2022, the applicable security measures for managing call diversions were updated so that the possibility for Customer Service centers and the in-person channel to activate them was inhibited: the customer is informed that they can do so through the Online Channel or by dialing the corresponding codes on the terminal.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Lawfulness of Processing

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing under paragraph 1, points c) and e), by laying down more precise specific requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for processing referred to in paragraph 1, points c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the controller.

The purpose of the processing must be determined in that legal basis or, in relation to the processing referred to in paragraph 1, point e), must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the data subjects affected; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures for processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any link between the purposes for which the personal data have been collected and the purposes of the intended further processing;
- b) the context in which the personal data have been collected, in particular regarding the relationship between the data subjects and the controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences of the intended further processing for the data subjects;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of processing, as well as the risks of...

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variable probability and severity for the rights and freedoms of individuals, the data controller and the data processor shall apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regular verification, evaluation, and assessment of the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, particularly as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law."

IV

Conclusion

Through the actions carried out by this Agency, it has been verified that the diversions appearing in the invoices provided by the complainant do not correspond to diversions of calls to third-party lines, but rather diversions caused by the voicemail and missed calls service.

On the other hand, from the actions taken, it is evident that the respondent does not allow diversions through calls to Customer Service, with the only way to carry it out being possession of the mobile terminal or knowledge of the user code and password to do it online.

Regarding the complainant's claim of having suffered identity theft to achieve the diversion of his lines to a third party, he does not provide evidence of the impersonation, nor that the diversions are to a third party's line, nor has it been substantiated through the actions carried out.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to TELEFÓNICA MÓVILES ESPAÑA, S.A.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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